

TENTATIVE RULING

Investment Retrievers, Inc.

v.

Kevin Francisco Hernandez

24CV004851

Plaintiff's Motion to Compel Discovery Responses

Hearing Date: June 26, 2026

Investment Retrievers, Inc. ("Plaintiff") filed a motion to compel Defendant Kevin Francisco Hernandez ("Defendant") to respond to Plaintiff's first set of Request for Admissions ("RFA"), Request for Production ("RPD"), and Form Interrogatories (collectively, "Discovery"). The unopposed motion for the RPD and Form Interrogatories is **GRANTED**. However, the motion regarding the RFA is **DENIED WITHOUT PREJUDICE** to Plaintiff filing a motion for deemed admissions.

Factual and Procedural Summary.

On July 25, 2025, Plaintiff served Defendant with its first set of Discovery. [Ketter Decl. at ¶¶ 3-4 and Exhs. A-B.] As of the filing of the motion on May 5, 2026, Defendant has not yet served its responses to the Discovery. [*Id.* at ¶¶ 5-7.] To date, Defendant has not opposed Plaintiff's motion to compel.

RFA and Form Interrogatories.

1. Legal Standard.

Generally, the party that receives the discovery must respond to each question or demand separately, under oath, within 30 days of service. [Code Civ. Proc. §§ 2030.010, 2030.030, 2030.210, 2030.260, 2031.010, 2031.030, 2031.210, and 2031.260.] If no response is received, the requesting party may file a motion for an order compelling a response and for monetary sanctions. [Code Civ. Proc. §§ 2030.010, 2030.290, 2031.010, and 2031.300.] In such cases, the requesting party is not required to attempt informal resolution before filing the motion. [Code Civ. Proc. §§ 2030.290 and 2031.300; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.] There is no time limit for filing a motion to compel if responses have not been served. [Code Civ. Proc. §§ 2030.290 and 2031.300; *Sinaiko*, 148 Cal.App.4th at 410-411.]

Failure to respond in a timely manner waives all objections to interrogatories or document requests. [Code Civ. Proc. §§ 2030.290, 2031.300.] An unverified response is the equivalent of no response at all. [*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.] If a motion to compel response is filed and the demanding party properly requests monetary sanctions, the Court "shall" impose a monetary sanction against the losing party unless it determines that the party made or opposed the motion "with substantial justification" or other

reasons make the sanction “unjust.” [Code Civ. Proc. §§ 2030.290, subd. (c), and 2031.300, subd. (c).]

2. Discussion.

Plaintiff’s motion to compel Defendant to respond to its RPD and Form Interrogatories is unopposed, and the Court has not been informed whether Defendant has provided complete, objection-free, and verified responses to such written discovery before issuing this Tentative Ruling. Therefore, regarding the RPD and Form Interrogatories, Plaintiff’s motion to compel is **GRANTED**, and Defendant shall respond to this discovery within 20 days of the Notice of Entry of the signed order.

RFA.

The initial penalty for a party’s failure to respond promptly to an RFA is a waiver of any objection to the requests, including those based on privilege or work product protection. [Code Civ. Proc. § 2033.280, subd. (a).] Failing to respond to an RFA does not automatically mean admissions. Instead, the propounding party must “move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction” under Code of Civil Procedure section 2033.010 et seq. [Code Civ. Proc. § 2033.280, subd. (b).] Specifically, a “court shall” grant a motion to deem request for admission contentions admitted, “unless [the court] finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” [Code Civ. Proc. § 2033.280, subd. (c).]

Plaintiff moves to compel Defendant to respond to its RFA. Such a motion is appropriate if Defendant properly served his RFA responses, but Plaintiff found them deficient. [Code Civ. Proc. § 2033.290.] In this case, Defendant never responded to Plaintiff’s RFA. Therefore, the correct remedy is for Plaintiff to file a motion for deemed admissions. [Code Civ. Proc. 2033.280.] Since Plaintiff does not seek a deemed-admitted order, the current motion is **DENIED WITHOUT PREJUDICE** to Plaintiff filing a deemed-admitted motion later.

Conclusion.

Plaintiff’s motion is **GRANTED IN PART**. Within 20 days of the Notice of Entry of the signed order, Defendant shall serve complete, verified, and objection-free responses to Plaintiff’s RPD and Form Interrogatories. As to the RFA, the motion is **DENIED IN PART**, but **WITHOUT PREJUDICE** to Plaintiff bringing a deemed-admitted motion at the appropriate time. Plaintiff shall prepare the Proposed Order consistent with this Tentative Ruling and give notice to Defendant.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court’s order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey

County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.